

**Risk neutral**

| <b>Fee rule</b>    | <b>Meritorious-P<br/>shortfall</b> | <b>Nonliable-D<br/>burden</b> | <b>Liabile-D<br/>excess burden</b> | <b>Gross outcome<br/>error</b> | <b>Total<br/>expenditures</b> |
|--------------------|------------------------------------|-------------------------------|------------------------------------|--------------------------------|-------------------------------|
| American           | 0.140                              | 0.118                         | 0.065                              | 0.132                          | 0.251                         |
| Trial Fee-Shifting | 0.068                              | 0.072                         | 0.057                              | 0.084                          | 0.193                         |